

CONTROLLED UNCLASSIFIED INFORMATION

Justification and Approval (J&A) for Other Than Full and Open Competition

Was a J&A approved for the preceding acquisition where that acquisition required a J&A? ☒ Yes ☐ No

!! Attach the preceding J&A in the staff package for this J&A. The preceding J&A will be used as a reference document.

Is this a new or amended J&A Document? ☒ New ☐ Amended (Prior to Award Only!)

Is this a Bridge Action as defined at [AFFARS 5302.101](#)? ☐ Yes ☒ No

Dollar Value of this Acquisition: ☐ ≤ \$750K ☒ > \$750K and ≤ \$15M ☐ > \$15M and ≤ \$100M ☐ > \$100M

Contracting Activity: 47th Contracting Squadron

Purchase Request (if available) / Local ID Number: AF 4009 # 6284558375272400

Payment to be Made via GPC (O&M Funds)

Program / Project (and PE, if applicable): Laughlin AFB Base Water

Program Type (PEO, Enterprise, of Operational): N/A

Authority:

6.302-1 – 10 USC 3204(a)(1), Only One Responsible Source - No Other Supplies or Services Will Satisfy Agency Requirements

Estimated Contract Cost (including options): \$ 4,956,370.00

J&A Type: ☐ Class ☒ Individual

COORDINATION ([AFFARS 5306.304\(a\)](#))

Date 08 Aug 2023	Chief of the Contracting Office (COCO) Matthew D. Thorne, Maj, USAF 47th CONS/CC/830-298-5439	Signature THORNE.MATTHEW.DAVID.1298792652 Digitally signed by THORNE.MATTHEW.DAVID.1298792652 Date: 2023.08.08 08:40:27 -05'00'
Date 14 Jul 2023	Contracting Officer Alejandro Alvarado 47th CONS/830-298-5992	Signature ALVARADO.ALEJANDRO.1131265014 Digitally signed by ALVARADO.ALEJANDRO.1131265014 Date: 2023.07.14 10:37:29 -05'00'
Date 14 Jul 2023	Requiring Activity Luis D. Cervera 47th CES/830-298-8181	Signature CERVERA.LUIS.D.1548944895 Digitally signed by CERVERA.LUIS.D.1548944895 Date: 2023.07.14 15:27:37 -05'00'
Date 15 Aug 2023	Local Legal Reviewer Todd A. Durden, Attorney-Advisor 47 FTW/JA - 830-298-5172	Signature DURDEN.TODD.ALAN.1610523265 Digitally signed by DURDEN.TODD.ALAN.1610523265 Date: 2023.08.15 11:15:51 -05'00'

APPROVAL ([AFFARS 5306.304\(a\)](#))

Date 16 Aug 2023	Competition Advocate Mark R. DeLaRosa 47th CONS/CC1/830-298-5641	Signature DELAROSA.MARK.R.1191289311 Digitally signed by DELAROSA.MARK.R.1191289311 Date: 2023.08.16 08:32:50 -05'00'
---------------------	--	--

Justification and Approval (J&A) for Other Than Full and Open Competition

I. Agency and Contracting Activity.

The United States Air Force, Air Education and Training Command, 47th Contracting Squadron, is executing this Justification for Other Than Full and Open Competition to support a sole source award to the City of Del Rio for Water Services. The authority for this justification is 10 U.S.C. 3204(a)(1) as implemented by FAR 6.302-1(a)(2), only one responsible source and no other supplies or services will satisfy agency requirements.

II. Nature and/or description of the action being approved.

A new contract will be awarded to the City of Del Rio (CAGE: 4ARQ0) for these services. The contract will be a firm-fixed-price "P" type multiple year contract with a ten-year period of performance valued at \$4,956,370.00. Estimated award date will be on or before 01 Oct 2023.

III. Description of supplies/services required to meet agency needs.

The Contractor shall provide water service to Laughlin Air Force Base (LAFB). The water provided shall be potable water and meet the Government's everyday needs for the proper operation of the stated facility. All services provided by the Contractor shall be in conformity with all applicable laws, rules, codes, industry standards, permits, and regulations, promulgated by any and all governmental authorities having jurisdiction.

a. Estimated Service Requirements are:

(1) Max Daily Demand: 1,660 Kgal.

(2) Estimated Annual Consumption: 175,095 Kgal.

Water shall be continuously available to the Government facility at a rate of 1,100 gallons per minute at a minimum pressure 80 psi gauge. The usage amounts shown in this paragraph are estimates only and do not constitute a Government usage guarantee. Meter/s shall be installed by the Contractor in a manner that allows verification of billing determinants by Government personnel. Meter/s shall be placed in the vicinity of the points of delivery at San Felipe Springs. Meter/s shall be owned, maintained, and calibrated by the Contractor. Calibration reports shall be produced and sent to the Government annually.

In accordance with FAR 41.103(b), GSA delegation allows utility service contracts for periods up to ten years. It is in the best interest of the government to award a ten year multiple year contract. Estimated contract value is \$4,956,370.00.

IV. Demonstration that the contractor's unique qualifications or the nature of the acquisition requires use of the authority cited above.

In accordance with FAR 6.302-1(b)(3), circumstances at Laughlin AFB, TX dictate that only one supplier can furnish the requested service as detailed below.

The City Del Rio being a municipality and managed by approved ordinances, is the only source available to provide water safe for human consumption. The City of Del Rio owns and operates all water lines in the area to include

Justification and Approval (J&A) for Other Than Full and Open Competition

those that service Laughlin AFB. The infrastructure servicing Laughlin AFB, within the confines of the base property lines, are the responsibility of Laughlin AFB.

V. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by subpart 5.2 and, if not, which exception under FAR 5.202 applies.

Water services are a public utility provided by the City of Del Rio. The exception for synopsis is FAR 5.202(a)(5). The proposed contract is for utility service (water) within the definition of FAR Subpart 41.101 and there is only one responsible source available within the meaning of FAR Subpart 6.302-1.

VI. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

Prices are regulated by the City of Del Rio ordinances, Ordinance Number 0:2021-109 - Utility Related Fees (Atch 1), and as such are determined to be fair and reasonable IAW DFARS 241.201(3)(iii).

VII. Description of the market research conducted and the results, or a statement of the reasons market research was not conducted.

Extensive market research was not conducted. The City of Del Rio is the only available source for this service and their prices are regulated by City of Del Rio ordinances, Ordinance Number 0:2021-109 - Utility Related Fees (Atch 1).

VIII. Any other facts supporting the use of Other Than Full and Open Competition.

N/A

IX. List of any sources that expressed, in writing, an interest in the acquisition.

Water services are a public utility provided by the City of Del Rio. There are no other sources available within Del Rio, TX.

X. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisitions for the supplies or services required.

No actions have been taken to remove barriers or enhance competition since this requirement is for a regulated utility with only one source. Water services are provided by the City of Del Rio. The City of Del Rio, being a municipality and managed by approved ordinances, is the only source available to provide water safe for human consumption.

Per PGI 206.304(a)(S-70)(i), as indicated by signature on the previous J&A Coordination and Approval Document, it was reviewed and the Approval Authority determined that all stated actions to remove barriers to competition

Justification and Approval (J&A) *for* Other Than Full and Open Competition

were accomplished.

XI. Certification by the Contracting Officer.

As evidenced by my signature above, I have determined this document to be both accurate and complete to the best of my knowledge and belief.

XII. Certification by the technical/requirements personnel.

As evidenced by my (our) signature(s) above, I (we) certify that any supporting data contained herein, which is my (our) responsibility, is both accurate and complete.